M/S. Nsl Sugars Ltd vs Karnataka Power Transmission ... on 14 March, 2012

COURT - I

Before the Appellate Tribunal for Electricity
(Appellate Jurisdiction)

I.A. No. 86 of 2012 in
DFR No. 691 of 2011

Dated: 14th March, 2012

Present : Hon'ble Mr. Justice M. Karpaga Vinayagam, Chairperson
Hon'ble Mr. Rakesh Nath, Technical Member

M/s. NSL Sugars Ltd. ...Appellant (s)

Versus

Karnataka Power Transmission Corporation Ltd. & Ors.
...Respondent(s)

Counsel for the Appellant(s) : Mr. Prabhuling K. Navadgi

ORDER

I.A. No. 86 of 2012 (Condone delay in re-filing) This is an Application to condone the delay of 250 days in re- filing the Appeal. We are not at all satisfied with the reasons given in the Petition requesting this Tribunal to condone the exorbitant delay of 250 days.

As a matter of fact, the Statute provides that the Appeal after it is filed, has to be disposed of by this Tribunal within 180 days. This is a case where lack of diligence has been shown throughout by the person concerned in not re-filing the appeal in time thereby caused inordinate delay of 250 days. Therefore, we do not find any reason to entertain the Application.

Accordingly, the Application is dismissed. Consequently, the Appeal is also dismissed.

(Rakesh Nath) (Justice M. Karpaga Vinayagam)
Technical Member Chairperson

Ts/sm